COMMONWEALTH OF MASSACHUSETTS
SUPREME JUDICIAL COURT

Suffolk, ss. No. SJ-2021-0129

CHRIS GRAHAM, JORGE LOPEZ, MEREDITH RYAN, KELLY AUER, COMMITTEE FOR PUBLIC COUNSEL SERVICES, and HAMPDEN COUNTY LAWYERS FOR JUSTICE,

Petitioners,

v.

DISTRICT ATTORNEY FOR HAMPDEN COUNTY,

Respondent.

PETITIONERS' MOTION TO EXPAND THE RECORD TO INCLUDE CLARIFYING INFORMATION

In its opposition brief (Opp.), the District Attorney for Hampden County raises several objections to the Petition's characterization of Mr. Graham's case, including the content of a recorded 911 call withheld from the defense and the legal basis of the decision vacating his conviction. *See* Opp. at 40 & n.37, 51. The HCDAO also points out, correctly, a typographical error in the affidavit of petitioner Kelly Auer, which inadvertently listed the year of an arrest involving Officer Bigda as 2016 instead of 2015. *Id.* at 42. Petitioners regret any confusion caused by their pleading, and respectfully request permission to file the enclosed supplemental documentation to clarify the record.

Specifically, Petitioners respectfully ask to submit:

1. A Supplemental Affidavit of Chris Graham attaching a transcript of the 911 call; and
2. A Supplemental Affidavit of Kelly Auer attaching the docket sheet in *Commonwealth v. Livernois*.

Properly clarified, the record does not alter or mitigate the fundamental defects in the HCDAO's prosecution of these cases, and the reasons supplied for exercising this Court's superintendence power to ensure that misconduct by the Springfield Police Department is thoroughly investigated and disclosed. In Mr. Graham's prosecution for possessing a firearm, it is beyond dispute that the prosecution team possessed, but withheld, an audio recording of a 911 call of a witness who specifically identified the gunman as not the "black" driver (i.e., Mr. Graham, who was driving the vehicle at the scene and is Black), but rather the companion of the injured person (i.e., off-duty Springfield police officer Remington McNabb, who is white and was walking with the injured off-duty corrections officer).[1] *See* Suppl. Graham Aff. Ex. A (911 call transcript) at 2:9-12,

[1] On page seven of the corrected petition, Petitioners state, "In the 911 call, this witness said that the person with the gun was 'white.'" As described above and as shown in the attached transcript, the witness identified the sole gunman as a person (McNabb) who everybody agrees is white and distinguished him from the "Black" driver. The witness evidently used the actual word "white" to identify the gunman in a later statement to the SPD internal investigation unit. Petitioners' counsel regret any confusion caused by the inadvertent error in the Petition.

3:17-4:4; *see also* HDAO R.A.013-021 (new trial decision describing allegations and testimony). That 911 call was highly exculpatory and not subject to any procedures that might apply to the disclosure of exculpatory material generated solely due to an investigation by the SPD's Internal Investigation Unit. Yet the HCDAO did not disclose the recording of the 911 before Graham was convicted; Graham's post-conviction counsel learned of the call through a public records request and then secured the recording from the HCDAO. C.R.A. 35-36.

Although the trial court vacated Mr. Graham's conviction based on ineffective assistance of his counsel, that ineffective assistance included a failure to independently uncover evidence concerning the highly exculpatory 911 call that the prosecution team had improperly withheld. *See Commonwealth v. Martin*, 427 Mass. 816, 823 (1998) ("Defense counsel's omissions, in any event, do not relieve the Commonwealth of the consequences of its failure to disclose"); HDAO R.A.021 (holding undisclosed witness recording and subsequent statement to SPD internal investigations unit constituted an "available and substantial ground of defense" for purposes of ineffective assistance analysis, but not addressing *Brady* implications). Had the prosecution team fulfilled its obligations to Mr. Graham, his counsel would have received the exculpatory recording in time to use it and without having to ask. Instead, Mr. Graham was convicted of a crime he did not

commit, possibly based on evidence fabricated to justify Officer McNabb's decision, after drinking, to respond to an attack on his companion by "pull[ing] a gun on a bunch of people." *See* Suppl. Graham Aff. Ex. A (911 call transcript) at 2:9-12, 3:17-4:4 (911 caller describing actions of the companion of the injured person); HDAO R.A. 013-17 (new trial decision explaining that Officer McNabb had consumed alcohol that evening, that the SPD officers did not wear gloves when handling the firearm attributed to Mr. Graham, and that "police investigators neglected to interview any of the many witnesses at the scene other than McNabb").

Similarly, in the Auer declaration, Petitioners regret the typographical errors, but they are immaterial. Whether the arrest involving Officer Bigda occurred in 2015 or 2016, the resulting prosecution remained open until 2019, long after the HCDAO was aware of, and should have disclosed, evidence of Officer Bigda's history of misconduct. *See* Suppl. Auer Affidavit Ex. A (docket sheet).

In summary, Petitioners regret any aspects of the Petition and accompanying submissions that may have been inadvertently confusing or inaccurate, and respectfully request to submit the enclosed materials to clarify the record.

Dated: July 13, 2021

Respectfully submitted,

/s/ Rebecca Jacobstein
Rebecca A. Jacobstein, BBO #651048
Mitchell Kosht, BBO #706334
Committee for Public Counsel Services
75 Federal Street, 6th Floor
Boston, MA 02110
(617) 910-5726
rjacobstein@publiccounsel.net

/s/ Jessica J. Lewis
Matthew R. Segal, BBO #654489
Jessica J. Lewis, BBO #704229
Daniel L. McFadden, BBO #676612
William C. Newman, BBO #370760
American Civil Liberties Union Foundation of Massachusetts, Inc.
211 Congress Street
Boston, MA 02110
(617) 482-3170
msegal@aclum.org

CERTIFICATE OF SERVICE

I certify that on July 13, 2021, I served the attached Motion to Expand the Record to Provide Clarifying Information via email to:

Thomas Hoopes
Libby Hoopes Brooks, P.C.
399 Boylston Street
Boston, Massachusetts 02116
thoopes@lhblaw.com

Elizabeth N. Mulvey
Crowe & Mulvey, LLP
77 Franklin Street
Boston, Massachusetts 02110
emulvey@croweandmulvey.com

/s/ Jessica J. Lewis
Jessica J. Lewis